

[Balochistan High Court]*Judges: Hon'ble Justice Rozi Khan Barrech***Habib Shah S/O Gulab Khan And Another****versus****The State****GRANT OF BAIL IN CYBER CRIMES**

Criminal Bail Application No. 658 of 2024

**(a) Prevention of Electronic Crimes Act (PECA) of 2015---S.21 (d), S.22 (a)(b)(d)---
Grant of Bail in Cyber Crimes---**

The application was dismissed because the FSL report confirmed the presence of nude videos of the minor in the mobile phones recovered from the accused, providing overwhelming prima facie evidence connecting them to the commission of the offence.

At the bail stage, the court must form a tentative opinion based on the available record rather than deciding in a vacuum. Where forensic analysis (FSL report) corroborates the recovery of incriminating material (explicit videos) from the accused's possession, prima facie connecting them to the crime, no ground for further inquiry exists.

*Mr. Karim Bakhsh for Appellant.**Mr. Allauddin Saeed, Mr. Umer Saeed for Respondent.**Ayaz Khan for Department.*

Application is dismissed accordingly

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JUDGMENT SHEET

IN THE HIGH COURT OF BALOCHISTAN, QUETTA.

Criminal Bail Application No. 658 of 2024

(CC # 100107704895)

Habib Shah and another Vs. The State

ORDER

Date of hearing: 19.12.2024 Date of announcement:

For applicants: Mr. Karim Bakhsh, Advocate (**absent**)

For State: Mr. Allauddin Saeed, Assistant Attorney General along with Mr. Umer Saeed, Assistant Director Legal FIA and

Ayaz Khan, SI/IO FIA Quetta.

Rozi Khan Barrech, J: Through this application, the applicants, namely Habib Shah, son of Gulab Khan and Dilawar, son of Meer Afghan, seek post-arrest bail in FIR No. 16/2024 dated 01.10.2024 registered under sections 21 (d) & 22 (a)(b) (d) of Prevention of Electronic Crimes Act (**PECA**) of 2015 at PS FIA Cyber Reporting Center Quetta on the complaint of Noor Ahmed, son of Ubaidullah, which was declined to accused/applicant Dilawar by learned Judicial Magistrate/MFC-VII/Magistrate FIA/Cyber Crimes Quetta vide order dated 23.10.2024 and to the accused Habib Shah son of Gulab Khan by learned Special Judge under PECA/Sessions Judge, Quetta vide order dated 05.12.2024.

2. Brief facts of the case are that on the report of complainant Noor Ahmed, son of Ubaidullah, that the accused/applicants Dilawar Khan, son of Meer Afghan and Habib Shah, son of Gulab Khan sexually abused and blackmailed his minor son namely Muhammad Razaq and made objectionable videos of his minor son and shared the

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explicit video, the FIA authorities conducted a raid and arrested the accused from Sariab road, Quetta. On personal search one mobile phone (VIVO Y66 in crown gold color was recovered) from accused/applicant Dilwar's possession and one (Tecno Kc3) color bay blue was recovered from accused/applicant Habib Shah, Both the recovered mobile phones were taken into possession and sent to Forensic Science Laboratory for analysis. The FSL report established presence of the accused/applicants in the sexually explicit video. Hence, the crime report.

3. On the last date of hearing learned counsel for the applicant was not in attendance. Same was the position on hearing before the last date. Under such circumstances, having left with no other option I decided to proceed with the matter after hearing the learned Assistant Attorney General and the FIA officials and reserved the case for announcement of order.

4. Though at the bail stage, the deeper appreciation of material available on record is unwarranted, and only the court has to form its opinion tentatively on the basis of the available record, it is also true that the bail application cannot be decided in a vacuum rather a bird's eye view is required to be taken.

5. After a tentative assessment of the record, it revealed that the accused/applicants is nominated in the FIR lodged by the complainant with the allegation that after committing unnatural offence with the complainant's son, the accused/applicants recorded sexually explicit

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video of the victim in their mobile phones and shared on social media. The mobile phones of the accused/applicants were also recovered by the investigation agency and same were sent to FSL and as per the FSL report nude videos of the minor were found in the said mobile phones. It transpires that overwhelming evidence is available on record against the accused/applicants at this state, which prima-facie connect them with the commission of the alleged offence, and there is no ground for further inquiry.

6. For the above-stated reasons, I am of the considered opinion that the accused/applicants have failed to make out a case calling for further inquiry, therefore, the application is dismissed accordingly.

The observations made in this order, being purely tentative in nature, would in no way prejudice the proceedings before the trial court, where the case would be decided strictly on its own merits after recording evidence.

Date of announcement: Judge

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